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## Appeal Decision

Site visit made on 4 August 2026

**by L Reid BSc (Hons) MA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 16 September 2026

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### Appeal Ref: 6010164

#### Verge at Chelmsford Road, Great Dunmow, Uttlesford CM6 1LL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Ms Ashleigh Boyce, AMP Clean Energy against the decision of Uttlesford District Council.
  - The application Ref is UTT/26/0113/FUL.
  - The development proposed is construction and operation of a micro energy storage project.
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### Decision

1. The appeal is allowed and planning permission is granted for the construction and operation of a micro energy storage project at Verge at Chelmsford Road, Great Dunmow, Uttlesford CM6 1LL in accordance with the terms of the application, Ref UTT/26/0113/FUL, subject to the conditions in the attached schedule.

### Preliminary Matters

2. Since the appeal was made, the Government published a revised National Planning Policy Framework (the Framework). Any policies that are material to this decision have not fundamentally changed in the Framework. As a result, I consider that there is no requirement for me to seek further submissions on the revised Framework, and I am satisfied that no party's interests have been prejudiced by my approach.
3. Appeal decisions must be made on the basis of the currently-adopted development plan. Since the application was determined, the Uttlesford Local Plan 2021 – 2041 March 2026 (the Local Plan) has been adopted and supersedes the Uttlesford Local Plan January 2005. The Council has provided the relevant policies, and both main parties have had the opportunity to comment on the implications for this appeal. I am therefore satisfied that my consideration of the appeal against the policies in the new Local Plan has prejudiced no party.

### Main Issues

4. The main issues in this appeal are:
  - Protected habitats and species;
  - Noise; and,
  - Crime and disorder.

## **Reasons**

### *Protected habitats and species*

5. The appeal site comprises a roadside verge that is currently overgrown with vegetation and trees. It adjoins a wider vegetated drainage ditch containing trees and dense shrubs. The site is not designated as a habitat or wildlife corridor. To facilitate the development, the vegetation within the site would be cleared, and some adjacent shrubs would be cut back.
6. Paragraph 99 of Circular 06/2005 states that the presence of a protected species is a material consideration where a development proposal is likely to result in harm to the species or its habitat. It is therefore essential that the presence or absence of protected species, and the extent to which they may be affected by the proposed development, is established before planning permission is granted. Otherwise, all relevant material considerations may not have been taken into account in reaching a decision.
7. The need to ensure ecological surveys are carried out should therefore only be left to coverage under planning conditions in exceptional circumstances, with the result that the surveys are carried out after planning permission has been granted. However, developers should not be required to undertake surveys for protected species unless there is a reasonable likelihood of the species being present and affected by the proposed development.
8. Although the Council's Ecologist advises that the appeal site may include features with the potential to support bat roosts, there is limited credible evidence to demonstrate that protected species are present, that they would be adversely affected by the proposal, or that habitats of particular ecological importance would be harmed. Nor is there substantive evidence that the development would lead to the loss of, or damage to, an important hedgerow. In these circumstances and having regard to the specific characteristics of the site, I am satisfied that any ecological concerns could be appropriately dealt with by way of a planning condition requiring an ecological survey to be undertaken, with any necessary mitigation measures subsequently secured and implemented.
9. For these reasons, I have insufficient evidence to show that the proposed development would result in harm to protected habitats or species. Subject to planning conditions, the proposed development would comply with Core Policy 25 of the Local Plan, which states that renewable energy development will be encouraged provided that any adverse impacts can be satisfactorily addressed, including cumulative impact on ecology and biodiversity.
10. Core Policy 40 of the Local Plan is focused on the statutory Biodiversity Net Gain requirements. As the proposed development would be exempt from the statutory requirements, this policy is not determinative.

### *Noise and disturbance*

11. The application is supported by a Battery Noise Impact Assessment (the NIA). Whilst the assessment does not address all matters in detail, it indicates that noise levels would reduce with increasing distance from the proposed battery units. The nearest noise-sensitive receptors are located in excess of 60 metres from the appeal site and are therefore considerably further away than the distances

assessed in the NIA. There is nothing substantive before me to counter the findings in the NIA.

12. The Council's concerns relate primarily to the lack of detailed technical information, rather than to any identified unacceptable impact on the living conditions of neighbouring occupiers. In these circumstances, I am satisfied that the NIA provides a sufficient baseline assessment of the likely noise impacts. As such, any remaining uncertainty could reasonably be addressed by planning condition, requiring a more detailed noise assessment to be undertaken and any necessary mitigation measures identified and implemented.
13. For these reasons, subject to planning conditions, I therefore conclude that the effect of noise pollution has been satisfactorily demonstrated. The proposed development would therefore comply with Core Policies 25 and 44 of the Local Plan, which amongst other things, require it to be demonstrated that nearby noise sensitive uses will not be exposed to noise impacts that adversely affect residential amenity.

### *Crime and disorder*

14. The submitted elevations show that the battery cabinet would be enclosed by mesh panel fencing. Whilst concerns have been raised regarding the effectiveness of the proposed fencing in terms of resisting cutting and unauthorised access, these matters could be addressed through appropriately worded planning conditions requiring the submission and approval of revised fencing specifications, together with details of any additional security measures.
15. As such, subject to planning conditions, I conclude that the proposed development would not give rise to crime and disorder. It would therefore comply with Policy 52 of the Local Plan, which amongst other things, requires the creation of safe public spaces.

### **Other Matters**

16. I have considered the matters raised in the objections received to the planning application in relation to highway safety and any future road layout changes. The proposed development would be set back away from the road edge. The Council stated that vehicles approaching the junction would have ample visibility, and I have no reason to reach a contrary view.

### **Conditions**

17. I have imposed the statutory implementation condition [1], along with a condition listing the approved plans to provide certainty [2].
18. In the interests of conserving and enhancing protected species and habitats, it is necessary to require an ecological survey to be undertaken [3]. This is a pre-commencement condition because vegetation clearance and other site preparation works could adversely affect ecological features. The survey findings will inform any necessary mitigation and enhancement measures, which must be agreed and implemented prior to the commencement of development, ensuring that protected species and habitats are appropriately safeguarded. The appellant has given written agreement to this condition.

19. To protect the living conditions of nearby occupants, it is necessary to require a more detailed noise impact assessment to be carried out to establish whether mitigation measures are needed [4]. This is a pre-commencement condition to ensure that any necessary mitigation is incorporated into the development from the outset. The appellant has given written agreement to this condition.
20. A condition requiring fencing and security measures details has also been imposed in the interests of crime and disorder [5].
21. Based on the information available this permission is considered to be one which will not require the approval of a biodiversity gain plan before development is begun because a statutory exemption applies.

### **Conclusion**

22. For the reasons given above, the appeal should be allowed.

*L Reid*

INSPECTOR

### **SCHEDULE OF CONDITIONS**

- 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plans: 01 LOCATION PLAN REV B, 02 LAYOUT PLAN REV B, PLAN 4, PLAN 5.
- 3) No development shall commence until an ecological survey has been undertaken by a suitably qualified ecologist and submitted to the Local Planning Authority. If the survey identifies the presence, or likely presence, of protected, priority or threatened species and habitats, a scheme of avoidance, mitigation and/or compensation measures shall be submitted to and approved in writing by the Local Planning Authority before development commences.

The scheme shall include:

- a) purpose and conservation objectives for the proposed measures;
- b) detailed designs or product descriptions to achieve stated objectives;
- c) locations of the measures by appropriate drawings;
- d) persons responsible for implementing the measures;
- e) details of initial aftercare and long-term maintenance (where relevant).

The development shall thereafter be carried out in accordance with the approved mitigation measures, and any approved biodiversity enhancements shall be implemented prior to the first operation of the development hereby approved and retained thereafter.

- 4) No development shall commence until a Noise Impact Assessment has been submitted to and approved in writing by the Local Planning Authority.

If mitigation measures are identified as necessary, details of such measures shall be submitted as part of the assessment and implemented in full before the first operation of the development hereby approved. The approved mitigation measures shall be retained thereafter.

- 5) Prior to installation the fencing specification and details of security measures shall be submitted to and approved in writing by the Local Planning Authority.

The development shall be carried out in accordance with the approved details prior to the first operation and shall thereafter be maintained.

**END OF SCHEDULE**